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THE LAND DISPUTES COURTS (THE DISTRICT LAND AND HOUSING TRIBUNAL) REGULATIONS, 2003

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THE LAND DISPUTES COURTS ACTS, 2002

(No. 2 of 2002)

REGULATIONS

Made under section 56

THE LAND DISPUTES COURTS (THE DISTRICT LAND AND HOUSING TRIBUNAL) REGULATIONS, 2003

PART I

PRELIMINARY

Citation

1. These Regulations may be cited as the land Disputes Courts (The District Land and Housing Tribunal) Regulations, 2002.

Interpretation Act No. 2 of 2002

2. In these Regulations unless the context otherwise requires:-

"Act" means the Land Disputes Courts Act, 2002.

"applicant" means a person who has submitted an application to the Tribunal subject to these Regulations;

"committee" means the Appointing and Disciplinary Committee for Tribunal brokers established under regulations 28;

"decree holder" means any person in whose favour a decree has been passed or an order capable of execution has been made under these Regulations;

"High Court" or "High Court (Land Division") means the Land Division of the High Court;

"judgement debtor" mens any person against whom a decree has been passed or an order capable of execution has been made under these Regulations;

"Mtaa Chairman" and "Kitongoji Chairman" have the meaning ascribed for it under the Local Government (District Authorities) Act, 1982 or the Local Government (Urban Authorities) Act, 1982.

Act No. 7 and 8 of 1982

"process server" means any person authorised by the Tribunal to effect service of documents of the Tribunal and include a Ward Executive Officer, a Mtaa Chairman or Kitongoji Chairman, Village Chairman and Village Executive Officer so authorised;

"Registrar means a Registrar or Assistant Registrar appointed under Section 28 of the Act.

"representative" means an advocate, or any relative or any member of the household or authorised officer of a body corporate;

"Tribunal" means the District Land and Housing Tribunal;

"Tribunal broker" means a broker appointed by the Registrar to the Tribunal under regulation 26;

"Tribunal witness" means witness summoned by the Tribunal to adduce evidence as may be required by the Tribunal but does not include a witness summoned by the Tribunal to give evidence for the parties;

"Ward Executive Officer" means the ward executive officer of the ward established under the Local Government Authority.

PART II

APPLICATIONS SUMMONS AND SERVICE

Procedure for filing an application

3.—(1) Any proceedings before the tribunal shall commence by an application filled by an applicant or his representative or payment of appropriate fees prescribed in the First Schedule to these Regulations.

(2) An application to the Tribunal shall be made in the form prescribed in the Second Schedule to these Regulations and shall contain:

(a) the names and address of parties involved;

(b) the address of the suit premises or location of the land involved in the dispute to which the application relates;

(c) nature of disputes and cause of action;

(d) estimated value of the subject matter of the dispute;

(e) relief sought;

(f) amount of rent if the dispute involves payment of rent.

(3) The application form under sub regulation (2) may be obtained from the Registry or sub-registry of the Tribunal by the applicant or his representative upon payment of prescribed fee.

Chamber application

4. The applicant or his representative may in addition to the application form submit to the Tribunal a chamber application.

Issuance of summons

5. Where an application is made to the Tribunal, the Tribunal may after consideration of the application or chamber application:

(a) issue summons to the respondent informing him of the time, date and place at which the application will be mentioned; or.

(b) require the applicant to produce more information as may be necessary; or

(c) reject an application and record the reasons for the decision.

Service of summons.

6.–(1) In effecting services of summons, a copy of the application or chamber application if any, shall be attached to every summons to be served upon a party to the application.

(2) Service under sub-regulation (1) shall be effected by process server.

(3) Services of summons under this Regulations may be effected on the part himself, his spouse, any member of the household above the age of 18 years his advocate or any other persons authorised by the party to represent him in that particular application.

(4) After the service, a person who effected the service shall–

(a) return to the Tribunal the original copy of the summons duly signed by the person to the served.

(b) swear an affidavit in the prescribed form indicating the manner in which the service has been effected.

PART III

SUBMISSION OF WRITTEN STATEMENT OF DEFENCE, COUNTER CLAIM AND COUNTER AFFIDAVIT

Written statement of defence, counter claim and counter affidavit

7.–(1) The respondent shall, upon being served with a copy of the application or chamber summons and if he is contesting or disputing the same;

(a) within 21 days of the service, file his written statement of defence to the application upon payment of prescribed fee;

(b) within 7 days of the service file his counter affidavit to the Tribunal upon payment of prescribed fee.

(2) Where the written statement of defence contains a counter claim, the Tribunal shall serve the applicant with a copy of the counter claim and the applicant shall within 21 days of the service file his written statement of defence to the counter claim.

(3) The chairman may, on good cause being shown by any party to the proceedings, extend the time within which to file the written statement of defence or counter claim as the case may be, except that in any case such extension shall not exceed-

(a) 14 days in case of filing a written statement of defence; or

(b) 7 days in case of filing a counter affidavit.

(4) The respondent shall not in preparing his written statement of defence be required to follow any format and the Tribunal shall be guided by the contents and not the format.

Date of hearing

8.-(1) Where the written statement of defence or counter affidavit has been filed in any proceedings, the chairman shall proceed to fix a hearing date for the application or chamber application as the case may be and no further pleadings shall be entertained.

(2) Where the hearing date is fixed–

(a) in the presence of the parties or their representatives, their presence shall constitute notice of the date of hearing;

(b) in the absence of the parties or any of them, the Tribunal shall cause notice or notices of the date of hearing to be served on the party or parties so absent.

(3) Service of notice of hearing under sub-regulation (2) may be effected on the party himself, his spouse, any member of the household above the age of 18 years, his advocate or any other person authorized by the party to represent him in that particular application.

Substituted services

9. Where the Tribunal is satisfied that it is not possible to effect personal service of a summons or a notice of the date of hearing on parties it may order services to be effected by-

(a) affixing a copy of the summons or the notice of hearing in a conspicuous place:

(i) on or as near as may be to the land where possible; and

(ii) where the land is village land, at the office of the village council or other public place within the village; or

(iii) where the land is general land, at the office of the local authority having jurisdiction in the area where the land is located; and

(b) registered mail;

(c) publishing a copy in one or more newspapers locally circulating in the area.

Documents Act No. 49 of 1966 Act No. 6 of 1967

10.-(1) The Tribunal may at the first hearing, receive documents which were not annexed to the pleadings without necessarily following the practice and procedure under the Civil Procedure Code, 1966 or the Evidence Act, 1967 as regards documents.

(2) Notwithstanding sub-regulation (1) the Tribunal may, at any stage of proceedings before the conclusion of hearing allow any party to the proceeding to produce any material documents which were not annexed or produced earlier at the first hearing.

(3) The Tribunal shall before admitting any document under sub-regulation (2)-

(a) ensure that a copy of the document is served to the other party;

(b) have regard to the authenticity of the document.

PART IV

PROCEDURE FOR HEARING AND JUDGEMENT

Hearing

11.-(1) On the day the application is fixed for hearing the Tribunal shall-

(a) where the parties to the application are present proceed to hear the evidence on both sides and determine the application;

(b) where the applicant is absent without good cause, and had received notice of hearing or was present when the hearing date was fixed, dismiss the application for non-appearance of the applicant;

(c) where the respondent is absent and was duly served with notice of hearing or was present when the hearing or was present when the hearing date was fixed and has not furnished the Tribunal with good cause for his absence, proceed to hear and determine the matter *ex-parte* by oral evidence

(2) A part to an application may, where he is dissatisfied with the decision of the Tribunal under sub-regulation (1), within 30 days apply to have the orders set aside, and the Tribunal may set aside its orders if it thinks fit so to do and in case of refusal appeal to the High Court.

Application to be read over to respondent

12.–(1) The Chairman shall at the commencement of hearing, read and explain the contents of the application to the respondent.

(2) The respondent shall, after understanding the details of the application under sub-regulation (1) be required either to admit the claim or part of the claim or deny.

(3) The Tribunal shall–

(a) where the respondent has admitted the claim, record his words and proceed to make orders as it thinks fit;

(b) where the respondent does not admit the claim or part of the claim, lead the parties with their advocates, if any, to frame issues.

Representation before Tribunal

13.–(1) The parties to the proceedings may during the hearing of proceedings be represented by an advocate or any other representative.

(2) Where a party's advocate is absent for two consecutive dates without good cause and there is no proof that such advocate is in the High Court or Court of Appeal, the Tribunal may require the party to proceed himself and if he refuses without good cause to lead the evidence to establish his case, the tribunal may make an order that the application be dismissed or make such other orders as may be appropriate.

(3) Where a party's advocate is absent for the reason of attending the proceedings in the High Court or Court of Appeal, the Tribunal shall not believe any other evidence as a proof for being in the superior courts other than by producing summons to the advocate and cause list from such courts.

(4) The Tribunal shall not have powers to set aside its own order made under sub-regulation (2) and any aggrieved party may appeal to the High Court (Land Division).

Evidence and submisions

14. Parties to the application or their advocates may during the hearing call such witnesses as may be required to produce evidence before the Tribunal and make final submissions either orally or in written form as the Tribunal may direct.

Dismissal for want of prosecution

15. The Tribunal may, where an application is left unattended by an applicant for a period of three months—

(a) dismiss the application for want of procecution; or

(b) where part of the facts or claim are admitted, make such orders as may be appropriate in respect of admitted facts or claim.

Amendment of pleadings

16. The Chairman may, on his own motion or on application by either party order amendment of pleadings.

Withdrawal of an application

17.-(1) The applicant may apply to the Tribunal to withdraw his application.

(2) The Tribunal may after consideration of the application under sub-regulation (1) allow the applicant to withdraw the application and make orders as to costs, as it deems fit.

Consent Judgement

18.-(1) Where parties at any stage of proceedings have agreed to settle the matter before the Tribunal the Chairman may enter consent judgement or order upon such terms as may be agreed by parties.

(2) A consent judgement or order so entered under sub-regulation (1) may be executed by the Tribunal in case of default or non compliance.

(3) A consent judgement or order so entered under this regulation shall be written signed by parties and certified by the Chairman.

Judgement of the Tribunal

19.-(1) The Tribunal may, after receiving evidence and submissions under regulation 14, pronounce judgement on the spot or reserve the judgement to be pronounced later:

Provided that a judgement of the Tribunal shall not be reserved under any circumstances for a period exceeding three months from the date of the conclusion of such proceedings.

(2) Notwithstanding sub-regulation (1) the chairman shall, before making his judgement, require every assessor present at the conclusion of hearing to give his opinion in writing and the assessor may give his opinion in Kiswahili.

(3) The Registrar of the High Court (Land Division) may, where the judgement is reserved for a period exceeding three months, advise the High Court (Land Division) to exercise the Power conferred upon it by section 43 of the Act.

Contents of judgement

20.-(1) The judgement of the Tribunal shall always be short, written in simple language and shall consist of:

(a) a brief statement of facts;
(b) findings on the issues;
(c) a decision; and
(d) reasons for the decision.

(2) The chaiman shall, immediately after the judgement issue a decree.

Costs

21.-(1) The Tribunal may make such orders as to costs in respect of the case as it deems just.

Special power of the Chairman

22. The Chairman shall have powers to determine:-

(a) preliminary objections based on points of laws;

(b) applications for execution of orders and decrees;

(c) objections arising out of execution of orders and decrees;

(d) interlocutory applications;

Provided that a ruling on a preliminary point of law or on any interlocutory application which have no effect of finally deciding the case shall not be appellable.

PART V

EXECUTION OF DECREES AND ORDERS

Execution of decrees and orders

23.-(1) A decree holder may, as soon as practicable after the pronouncement of the judgement or ruling, apply for execution of the decree or order as the case may be.

(2) An application for execution of orders and decrees under sub-regulation (1) shall be made in the appropriate forms prescribed in the Second Schedule to these Regulations; and shall indicate the mode in which the execution is sought to be carried out.

(3) The Chairman shall, upon receipt of the application, make an order requiring a judgement debtor to comply with the decree or order to be executed within the period of 14 days.

(4) Where after the exipiration of 14 days there is no objection or response from the judgement debtor, the Chairman shall make execution orders as he thinks fit.

(5) The Chairman shall, where there are objections from the judgement debtor consider the objection and make such orders as may be appropriate.

Provided that hearing of objections under this sub-regulation shall be limited to the subject matter of the objections.

Appeals

24. Any party who is aggrieved by the decision of the Tribunal shall subject to the provisions of the Act, have the right to appeal to the High Court (Land Division):

Provided that, an appeal shall not in any case be a bar to the execution of decree or order of Tribunal.

Application for stay of executive

25.-(1) Notwithstanding regulation 24 a judgement debtor who intends to appeal to the High Court (Land Division) may at any time before the decree or order of the Tribunal is executed, apply to the Tribunal for stay of execution.

(2) The chairman shall, immediately after receiving an application for stay of execution under sub-regulation (1) require all parties to appear before the Tribunal for hearing and determination of the application for stay of execution.

(3) Subject to the provisions of this regulation, no application for stay of execution shall be heard *ex-parte*.

(4) The chairman shall, after hearing both parties, proceed to make an order for stay of execution, except that no order for stay of execution shall be made unless-

(a) it is established to the satisfaction of the chairman that substantial and irreparable loss will result if the order is not made; or

(b) security has been given by the judgement debtor to the due performance of such a decree or order.

Appointment of Tribunal Brokers

26. Notwithstanding the Court Brokers and Process Servers (Appointment, Remuneration and Discipline) Rules G.N. No. 315 of 1997, the Registrar shall appoint from amongst court brokers or from amongst registered and licenced auctioneers who shall act as Tribunal brokers for purposes of these Regulations.

Procedure for appointment of Tribunal Brokers

27.–(1) The Registrar shall before appointing Tribunal Brokers under regulation 26, advertise the matter in the newspaper of wide circulation calling upon qualified persons to apply for appointment as Tribunal Brokers.

(2) The Registrar shall prepare and keep a list of names addresses and qualifications of applicants and submit the list to the Appointment and Desciplinary Committee for Tribunal Brokers for consideration and recommendations.

(3) The Registrar shall, immediately after receiving the recommendations of the Committee, appoint applicants recommended for appointment by the Committee as Tribunal Brokers.

Establishment of Committee

28.–(1) There shall be established a committee to be known as the Appointment and Disciplinary Committee for Tribunal Brokers which shall consist of not less than five members who shall be appointed by the Minister from amongst Government employees with experience in land matters.

(2) The Chairman of the Committee shall be appointed by members during its meeting.

(3) The Registrar shall be the Secretary to the Committee.

(4) The term of office of members of Appointment and Disciplinary Committee shall be three years and may be eligible for re-appointment for a further term.

Performance of the Tribunal Broker

29.–(1) The Chairman shall, for the purpose of execution, assign duties and give directions to any Tribunal Broker appointed by the Registrar under regulation (26), on the process in which execution shall be carried out.

(2) The Tribunal Broker who is assigned duties by the Chairman under sub-regulation (1) may, for the purpose of facilitating his duties, seek the services of an officer responsible for land survey, land management and valuation or any other officer as he may deem fit.

(3) The Tribunal shall, immediately without further notices to the judgement debtor-

(a) execute the orders: and

(b) within 14 days make a report to the chairman indicating the manner in which execution has been carried out.

(4) Where the mode of execution involves attachment and sale of properties, all rules which govern auctions shall apply.

Close of execution process

30.-(1) The chairman shall, upon receipt of the report by a broker under regulation 29, proceed to see to it whether justice has been done in accordance with the judgement.

(2) The chairman shall:-

(a) where he is satisfied with the Broker's report, close the execution process:

(b) where he is not satisfied with the Broker's report, make such orders as may be appropriate;

(c) where necessary report the matter to the Registrar if the report is not satisfactory.

Remuneration of Tribunal Brokers

31. The Tribunal Broker appointed subject to these regulations shall be entitled to such remuneration as may be prescribed in the Third schedule to these regulations.

Disciplinary proceedings against Tribunal brokers

32.-(1) The Registrar or Assistant Registrar and Chairman shall have power to inspect and evaluate the performance of Tribunal Broker within their area of jurisdiction once every year or as may be required.

(2) Where a complaint is against the performance of a Tribunal Broker is lodged to the Tribunal, the Chairman shall immediately refer the matter to the Appointment and Disciplinary Committee for disciplinary proceedings.

(3) Where the disciplinary proceedings are instituted, the Appointment and Disciplinary Committee shall regulate its proceedings according to the principals of natural justice.

(4) The Appointment and Disciplinary Committee shall have power to revoke the appointment or impose other penalties including reprimand.

PART VI

APPOINTMENT AND REMOVAL OF ASSESSORS AND CHAIRMAN

Appointment of assessors

33.–(1) The Minister shall, in appointing assessors to the Tribunal subject to sections 26 and 27 of the Act.

(a) consider persons with knowledge in land and housing matters and customs and norms of the area in which the Tribunal is established.

(b) ensure that a person to be appointed as an assessor:

(i) is not in the public service;

(ii) has a minimum education of form four;

(iii) he is a man or woman of repute and integrity in the area where he ordinarily resides;

(iv) he has no record of criminal conviction.

(2) Notwithstanding sub-regulation (1) no assessor shall be allowed to sit as an assessor in any case in which he or his immediate family member has an interest.

(3) Assessors appointed under this regulation shall immediately after their appointment be required to subscribe to the code of conduct for assessor's prescribed in the Fourth Schedule.

Removal of Assessors

34.–(1) The Minister may, on the recommendation of the Registrar remove an assessor from service as such if he is satisfied that such assessor-

(a) breaches the code of conduct;

(b) conducts himself in irresponsible and indiscipline manner in the process of performing his/her duties.

(2) An assessor may at any time resign by giving notice in writing to the Minister.

Removal of Chairman

35. The Minister may, after an inquiry conducted under section 18 (2) of the Land Act. No. 4 of 1999 remove the Chairman from the office.

Administration of Oaths

36.–(1) The Chairman and Assessors appointed under these Regulations shall require to take an oath before the Regional Commissioner of the region in which the Tribunal is established.

(2) The oath under these regulation shall be in the form prescribed in the Fifth Schedule and shall be administered once.

PART VII

MISCELLANEOUS REGULATIONS

Role of the Registrar

37.–(1) The Registrar shall have a duty to give directions in writing to all or any of the Tribunal as to:

(a) allocate duty station to Chairman;

(b) arrangements of the business of the Tribunal;

(c) the places at which the Tribunal may sit and time during which they may sit;

(2) The Chairman shall in fulfillment of the objectives under sub-regulation (1), provide advice to the Registrar as may be required.

Role of Assistant Registrar

38. An Assistant Registrar appointed under section 28 of the Act, shall, have the duty to ensure that consistency of administrative standards apply to Tribunals as may be directed by the Registrar.

Allowances

39.–(1) The Minister shall, upon recommendation from the Registrar prescribe allowances payable to the Chairman of the Tribunal, Assessors and Tribunal witnesses.

(2) The Registrar shall in recommending allowances to be paid, under this regulation, have regard to:-

(a) the workload in the Tribunal;

(b) transport costs;

(c) meals and accommodation costs where necessary; and

(d) the duration of time for hearing the case.

(3) Notwithstanding sub-regulation (2) allowances payable may vary from one Tribunal to another depending on whether the Tribunal is established within the area of the City, Municipality, Township or District Council.

(4) Allowances prescribed under sub-regulation (1) shall be varied or reviewed by the Minister from time to time as may be necessary.

Fees and Cost of the Tribunal

40.–(1) All costs and fees payable for various services of the Tribunal shall be as prescribed in the First Schedule to these Regulations.

(2) The Minister shall by notice published in the *Gazette* amend or replace the First Schedule to these Regulations.

SCHEDULES

FIRST SCHEDULE

Under Regulation 3(1)

FEES FOR THE DISTRICT LAND AND HOUSING TRIBUNAL

No.	*Item*	*Fee*
1.	On obtaining application forms	Shillings ..... 500/=
2.	On filing an application, where the subject matter does not exceed ten million	Shilings ..... 5,000/=
3.	On filing an application, where the subject matter exceed ten million	Shilings ..... 15,000/=
4.	On filing written statement of defence	Shilings ..... 2,500/=
5.	On filing chamber application	Shillings ..... 5,000/=
6.	On filing an affidavit	Shillings ..... 1,500/=
7.	On filing annextures to the pleadings, each document	Shillings ..... 500/=
8.	On filing memorandum of appeals arising from the Ward Tribunals	Shillings ..... 2 000/=
9.	On filing petition to the Land Division of the High Court	As may be applicable to the High Court (Land Division)
10.	On filing Reply to the petition of appeal to the High Court	As may be applicable to the High Court (Land Division)
11.	For a copy of proceedings for each typed page,	Shillings ..... 500/=
12.	For a copy of judgement or ruling	Shillings ..... 2,000/=
13.	For a copy of decree or drawn order	Shillings ..... 500/=
14.	For service of application, written statement of Defence, chamber application or affidavit within the City or Municipality, the Process Server shall be paid	Shillings ..... 3,000/=

15.	For service of application, written statement of Defence, chamber application or affidavit in any other areas other than the City or Municipality, the Process Server shall be paid	Shillings ..... 2,000/=
16.	On issuing witness summons or notice	Shillings ..... 500/=
17.	On filing bill of costs	Shillings ..... 5,000/=
18.	On filing application for execution	Shillings ..... 2,000/=
19.	On filing or obtaining any other document which is not specified in this Schedule	Shillings ..... 500/=

SECOND SCHEDULE

Under Regulation 3(2)

PRESCIBED FORMS FOR THE TRIBUNAL

FORM NO. 1

IN THE DISTRICT LAND AND HOUSING TRIBUNAL

FOR .....

AT .....

APPLICATION NO. ..... OF .....

..... APPLICANT

VERSUS

..... RESPONDENT

APPLICATION

1. Name and Address of applicant .....

.....

2. Name and Address of the Respondent .....

.....

3. Location and address of the suit premises/land .....

.....

.....

4. Estimated value of the suit property .....

.....

5. Where arrears of rent is an issue, state monthly rent .....

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6. (a) Cause of action/brief statement of facts constituting the claim:

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(b) List of relevant documents to be annexed, if any,

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7. Reliefs claimed .....

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.....

8. Verification: I,

.....being the applicant/ Advocate/Representative in this case, hereby certify that what has been stated above is true to the best of my knowledge/information supplied to me by

.....

(Signed).....
APPLICANT/REPRESENTATIVE/ADVOCATE FOR APPLICANT

9. Fees paid Tshs. ..... ERV. No..... date .....

10. Presented for filing this .....day of .....200.....

.....,
Clerk of the Tribunal

Form No. 2A

IN THE DISTRICT LAND AND HOUSING TRIBUNAL

FOR .....

AT .....

APPLICATION NO. ..... OF .....

..... APPLICANT

VERSUS

..... RESPONDENT

SUMMONS/NOTICE

TO: .....
.....
.....

Take notice that the above matter is coming for mention/hearing on .....day of ..... before the Hon. ..... Chairman of the tribunal. You are hereby commanded to appear at ..... when the case will be mentioned/heard.

GIVEN under my hand and the seal of this tribunal this ..... day of ....., 200.....

.....
CHAIRMAN

I, ...

hereby acknowledge receipt of this Summons/Notice

Signature .....

Date .....

AFFIDAVIT OF PROCESS SERVER

1. I, ... (name and identity) being the process server of this Tribunal, hereby certify that the service of application/written statement of defence/ chamber application/counter affidavit/summons/document (delete whichever inapplicable) have been effected/not effected to the applicant/respondent/witness.

2. The service was effected/not effected under the following circumstances:

.....

.....

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.....

SWORN/AFFIRMED BEFORE:

Name: ....)

Qualification: .....) .....

Deponent

Signature: .....)

Date: .....)

Form No. 2B

BARAZA LA ARDHI NA NYUMBA LA WILAYA

.....

MAHALI .....

MAOMBI NA. ..... MWAKA 200 .....

..... MUOMBAJI

DHIDI YA

..... MJIBU MAOMBI

WITO/KUITWA SHAURINI

KWA: .....

.....

.....

Fahamu kwamba shauri hili limepangwa kutajwa/kusikilizwa tarehe .....

mwezi ..... mwaka ..... saa ..... mbele ya

Mh. ..... Mwenyekiti wa Baraza.

Hivyo unaamriwa kuhudhuria mbele ya Baraza siku hiyo bila kukosa.

AMRI hii imetolewa kwa mkono wangu na Lakiri/Muhuri wa baraza hili leo tarehe

..... mwezi .....mwaka 200.....

.....

MWENYEKITI

UTHIBITISHO WA KUPOKELEWA

Mimi .....

Nimepokea wito/kuitwa shaurini

Saini .....

Tarehe .....

KIAPO CHA MPELEKA WITO/KUITWA SHAURINI

1. Mimi ..... (Jina na Sifa) nikiwa mpeleka wito/kuitwa shaurini, nathibitisha kwamba maombi Na. ..... /utetezi/maombi madogo/ wito (***ondoa isiyo husika***) nimezipeleka kwa muhusika.

2. Wito ulipokelewa/haukupokelewa katika mazingira yafuatayo:-

.....

.....

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.....

.....

NAAPA/NATHIBITISHA MBELE YA:

Jina: .....)

Sifa: .....) .....

Saini ya Mpeleka wito

Saini: .....)

Tarehe: .....)

Form No. 3

IN THE DISTRICT LAND AND HOUSING TRIBUNAL

FOR .....

AT .....

APPLICATION NO. ..... OF .....

..... DECREE HOLDER

VERSUS

.....JUDGEMENT DEBTOR

APPLICATION FOR EXECUTION

1. I, ... being the decree holder in the above application, hereby apply for execution of the decree/order.

2. The decretal sum is Tshs. .....

.....

3. The decree/order made the following other awards (which are not monetary):

.....

.....

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.....

.....

4. I apply for execution of the decree in the following mode/manner

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(Signed) .....

DECREE HOLDER

5. Fees paid Tshs. .....ERV. No. ..... date .....

6. Presented for filling this ..... day of ..... 200.....

.....

TRIBUNAL CLERK

THIRD SCHEDULE

Under regulation 31

FEES AND COSTS FOR TRIBUNAL BROKERS

The following fees and costs shall be payable to every Tribunal Broker:

I. *Attachments:*

For attaching immovable property:

(a) where the estimated value does not exceed TShs. 5 million 5%

(b) where the estimated value exceed TShs. 5 million 3%

For attaching movable property:

(a) where the estimated value does not exceed TShs. 5 million 10%

(b) where the estimated value of the property exceeds TShs. 5 million..... 5%

II. *Sale:*

1. For selling any property where the amount realised does not exceed three million 10%

2. For selling any property where the amount realised exceed three million but does not exceed five million 7%

3. For selling any property where the amount realised exceed five million 5%

III. *Storage:*

1. Where the property so attached is sold, the Tribunal broker shall not be entitled to storage fees.

2. Where the property attached is realesed, the broker shall be entitled to in addition to attachment fees, storage fees as follows:

(i) For the first 45 days or any part thereof 5%

(ii) For any further period 10%

Provided that no property shall be stored for a period exceeding six months. And if it so remains, the chairman shall make orders that it be sold or released on conditions as may deem fit.

IV. *Eviction:*

1. For breaking the front door ..... 10,000/=

2. For evicting from each room (bathrooms and toilets not included) ..... 30,000/=

For purposes of these regulations, where the eviction is done in a self contained house, the sitting room, dinning rooms and kitchen shall be deemed to be rooms of equal size and the fees shall be the same.

V. In addition to the above fees, the broker shall also be entitled, subject to the discretion of the chairman, costs for:

1. Transport

2. Advertisements

3. Security (where needed)

FOURTH SCHEDULE

Under regulation 34(2)

THE CODE OF CONDUCT FOR ASSESSORS

Whereas it is necessary to establish an independent, expeditious and just system for adjudication of land and housing disputes; Preamble

Whereas it is important to promote public participation in land and housing disputes settlement in a manner which promotes efficiency, transparency and effectiveness;

Whereas a code of conduct is highly needed for the awareness of the assessors themselves on how to behave as such and for the disciplinary authority in the day to day conduct of their daily duties as imposed by law;

Now Therefore, it is hereby established a code of conduct for assessors of the District Land and Housing Tribunal as follows:

An assessor of the Tribunal shall:-

Reputation

1. Behave always in a manner which indicates a command for respect for himself and the Tribunal.

Impartiality

2. Be impartial and behave himself in a manner which will make the parties remove any suspicion of favouratism in all proceedings before the Tribunal.

Conflict of Interest

3. Never sit in a case where he himself, or any of his immediate family members has an interest.

Impersonation

4. Know the limits of his duties and in any case he should not attempt or impress on the public that he perfoms functions of the chairman.

Confidentiality

5. Alway maintain silence and secrecy in respect of any pending proceedings:

(a) he shall, in all cases, keep confidential all pending proceedings; and

(b) he shall not speak or disclose any content of the proceedings, so pending, outside the tribunal.

Cordial relationship

6. Not establish friendship with a party to the proceedings while the proceedings are still pending.

Legal advice to parties

7. Never perform the role and functions of advocates. He should refrain from drafting pleadings, letters of complaint or purport to give any legal advice to parties.

Communication with parties restricted

8. Avoid any communications with parties in the premises of the Tribunal and in any case, he shall never get outside the building and talk to parties or their relatives before or after the working hours.

Punctuality

9. Be punctual and attend all sittings as may be scheduled by the Chairman and he should not be absent for a period exceeding one month without good cause.

Influence to the Chairman restricted

10. Not influence the Chairman to appoint him to sit to any particular matter.

Written opinion

11. At the conclusion of any proceedings he shall give his opinion in writing without delay.

Gifts and Bribes Restricted

12. Never receive any gifts whatsoever or solicit and/or receive bribes from any of the parties.

FIFTH SCHEDULE

Under regulation 36

KIAPO CHA MWENYEKITI/MAKAMU MWENYEKITI

Mimi ..... Mwenyekiti/Makamu Mwenyekiti wa Baraza la Ardhi na Nyumba la Wilaya ya..... naapa kwamba nitafanya kazi kwa uaminifu na uadilifu, nikiongozwa na Sheria na Kanuni zilizopo.

Ee Mungu nisaidie.

Sahihi yangu: .....

MBELE YANGU:

Jina: .....

Cheo: .....

Sahihi: .....

Tarehe: .....

KIAPO CHA MJUMBE WA BARAZA

Mimi ..... Mjumbe wa Baraza la Ardhi na Nyumba la Wilaya ya ..... naapa kwamba nitafanya kazi kwa uaminifu na uadilifu, na nakubali kuwa nitaishi kwa kufuata maadili ya ujumbe wa Baraza kama ilivyoonyeshwa katika kanuni za Baraza hili.

Ee Mungu nisaidie.

Sahihi yangu: .....

GN. No. 174 (contd.)

MBELE YANGU:

Jina: .....

Cheo: .....

Sahihi: .....

Tarehe: .....

Dar es Salaam,
30th May, 2003

GIDEON ASIMULIKE CHEYO,
Minister for Lands and Human Settlements Development

GOVERNMENT NOTICE No. 175 published on 27/6/2003

REFUGEES ACT, 1998

(ACT. No. 9 OF 1998)

ORDER

Made under Section 27(1)

WHEREAS, pursuant to section 27 (1) of the Refugees Act, 1998, the Minister for Home Affairs on being satisfied that any asylum seeker or a refugee is conducting himself in a manner prejudicial to peace and good order or is prejudicing relations between the Government of Tanzania and any other Government, conferred with power to direct, by order in writing, detaining any such asylum seeker or refugee in a prison for a period not exceeding three months;

AND WHEREAS, I am satisfied that person whose names appear in the Schedule to this Order are acting in a manner prejudicial to peace and good order.